

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 787

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO PODIATRISTS; REPEALING CHAPTER 6, TITLE 54, IDAHO CODE, RELATING TO PODIATRISTS; AMENDING TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 6, TITLE 54, IDAHO CODE, TO DEFINE PODIATRY, TO PROVIDE THAT LICENSURE IS A PREREQUISITE TO PRACTICE, TO ESTABLISH POWERS AND DUTIES OF THE STATE BOARD OF MEDICINE, TO ESTABLISH PROVISIONS REGARDING APPLICATION AND EXAMINATION FOR LICENSE, TO PROVIDE FOR LICENSE ISSUANCE AND RENEWALS, TO ESTABLISH GROUNDS FOR LICENSE SUSPENSION, DENIAL, REFUSAL TO RENEW, OR REVOCATION, TO DEFINE UNPROFESSIONAL CONDUCT, TO ESTABLISH PROCEEDINGS FOR SUSPENSION, REVOCATION, OR OTHER DISCIPLINE OF LICENSURE, TO PROVIDE FOR LICENSURE BY ENDORSEMENT, TO PROVIDE THAT PRACTICING WITHOUT A LICENSE SHALL BE A FELONY, AND TO PROVIDE FOR CERTAIN DISPOSITION OF FUNDS AND PROPERTY; AMENDING SECTION 54-1805, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE COMPOSITION OF THE BOARD OF MEDICINE AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 39-1395, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE PRACTICE OF PODIATRY AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 54-4401, IDAHO CODE, TO REVISE A DEFINITION AND TO MAKE A TECHNICAL CORRECTION; PROVIDING THAT CERTAIN ADMINISTRATIVE RULES CONTAINED IN IDAPA 24.11.01 SHALL BE NULL, VOID, AND OF NO FORCE AND EFFECT; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 6, Title 54, Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Title 54, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 6, Title 54, Idaho Code, and to read as follows:

CHAPTER 6

PODIATRIC MEDICAL PRACTICE ACT

54-601. PODIATRY DEFINED. (1) Podiatry shall, for the purpose of this chapter, mean the diagnosis and mechanical, electrical, medical, physical, and surgical treatment of ailments of the human foot and leg and the casting of feet for the purpose of preparing or prescribing corrective appliances, prosthetics, or custom orthopedic shoes for corrective treatment; however, the casting of feet for preparing corrective appliances, prosthetics, or custom orthopedic shoes may be permitted on the prescription of a duly licensed person in the healing arts in this state. Podiatrists shall be limited in their practice to the human foot and leg. Surgical treatment, as herein used, shall mean the surgical treatment of the foot and ankle and those soft tissue structures below the knee governing the function of the foot and ankle, but it shall not include the amputation of the leg, surgery of

1 the knee joint, surgery of the bony structures proximal to the distal half of
2 the tibia, or the administration or monitoring of general anesthesia.

3 (2) Advanced surgical procedures, as determined by the state board of
4 medicine, shall be performed in a licensed hospital or certified ambulatory
5 surgical center accredited by the joint commission or the accreditation as-
6 sociation for ambulatory health care where a peer review system is in place.

7 (3) A podiatrist may administer narcotics and medications in the treat-
8 ment of ailments of the human foot and leg in the same manner as a physician
9 licensed to practice pursuant to chapter 18, title 54, Idaho Code.

10 (4) A podiatrist is defined as a natural person who practices podiatry
11 within the scope of this chapter and shall be referred to as a podiatric
12 physician and surgeon. Nothing within this chapter shall prohibit any
13 physician or surgeon, registered and licensed as such and authorized to
14 practice under the laws of the state of Idaho, or any physician or surgeon of
15 the United States army, navy, or public health service when in actual perfor-
16 mance of his duties from practicing medicine and surgery.

17 54-602. LICENSE A PREREQUISITE TO PRACTICE. It is unlawful for any
18 person to practice podiatry unless licensed to do so as provided in this
19 chapter.

20 54-603. POWERS AND DUTIES OF STATE BOARD OF MEDICINE. The state board
21 of medicine, herein referred to as the board, shall have the following powers
22 and duties:

23 (1) To ascertain the qualifications and fitness of applicants to prac-
24 tice podiatry and to pass upon the qualifications of applicants for licenses
25 by endorsement; and

26 (2) To conduct hearings and proceedings for discipline of licensees as
27 set forth in this chapter.

28 54-604. APPLICATION AND EXAMINATION FOR LICENSE. (1) Every person,
29 except as hereinafter provided, desiring to practice podiatry within this
30 state shall make application to the board in the form designated by the
31 board. Such application shall be accompanied by an application fee not to
32 exceed two hundred dollars (\$200) and an original license fee not to exceed
33 four hundred dollars (\$400).

34 (2) Each applicant shall:

35 (a) Not have been convicted or found guilty in this state or in any other
36 state of a crime that is deemed relevant in accordance with the provi-
37 sions of section 67-9411(1), Idaho Code;

38 (b) Submit to a fingerprint-based criminal history background check in
39 accordance with the provisions of section 67-9411A, Idaho Code;

40 (c) Be a graduate of a four (4) year school of podiatry located within
41 the United States or Canada approved by the council on podiatric medical
42 education and the American podiatric medical association, or its for-
43 eign equivalent;

44 (d) Have completed an accredited podiatric residency approved by the
45 council on podiatric medical education of no less than twenty-four (24)
46 months, a minimum of twelve (12) months of which shall be surgical.

1 Proof of completion shall be received directly from the residency pro-
2 gram; and

3 (e) Pass all parts of the American podiatric medical licensing examina-
4 tion administered by the national board of podiatric medical examiners.

5 54-605. LICENSES -- ISSUANCE -- RENEWALS. (1) If an applicant passes a
6 satisfactory examination and shows that he is a person who has not been con-
7 victed or found guilty in this state or in any other state of a crime that is
8 deemed relevant in accordance with section 67-9411(1), Idaho Code, and that
9 he possesses the qualifications of a licensed podiatrist required by this
10 chapter, he shall be entitled to a license authorizing him to practice podi-
11 atry within the state of Idaho. The successful applicant shall be issued a
12 license by the division of occupational and professional licenses upon pay-
13 ment of the original license fee.

14 (2) In order to maintain and renew a license, licensees must submit
15 proof of completion of thirty (30) hours of continuing education every two
16 (2) years, reported with their renewal application. All continuing educa-
17 tion courses shall be germane to the practice of podiatry. The renewal fee
18 shall not exceed five hundred dollars (\$500).

19 54-606. LICENSES -- GROUNDS FOR SUSPENSION, DENIAL, REFUSAL TO RENEW,
20 OR REVOCATION. No license may be issued, and a license previously issued may
21 be suspended, revoked, or otherwise disciplined, if the person applying or
22 the person licensed is:

23 (1) Found guilty by a court of competent jurisdiction of a crime that is
24 deemed relevant in accordance with section 67-9411(1), Idaho Code;

25 (2) Found by the board to be a repeated and excessive abuser of any drug,
26 including alcohol, or any controlled substance;

27 (3) Found by the board to be in violation of any provision of this chap-
28 ter;

29 (4) Found by the board to have used fraud or deception in the procuring
30 of any license;

31 (5) Found by the board to have had any action, including denial of a li-
32 cense or the voluntary surrender of or voluntary limitation on a license,
33 taken against the licensee by any peer review body, any health care insti-
34 tution, any professional medical society or association, or any court, law
35 enforcement, or governmental agency;

36 (6) Found by the board to have failed to comply with the applicable
37 standard of podiatric care; or

38 (7) Found by the board to have failed to cooperate in a board investiga-
39 tion or to comply with a board order.

40 54-607. UNPROFESSIONAL CONDUCT DEFINED. It shall constitute unpro-
41 fessional conduct justifying suspension, revocation, or other discipline of
42 a license for any person holding a license to practice podiatry to:

43 (1) Offer, give, or promise, either directly or indirectly, any gift in
44 return for the procurement of a patient or patients for podiatric treatment;

45 (2) Request, list, accept, or receive any rebates or commission for
46 prescribing or recommending any footwear, drug, medicine, or any other ar-
47 ticle, to his patients;

1 (3) Prescribe, dispense, or pretend to use, in treating any patient,
2 any secret remedial agent, or manifest or promote its use in any way, or guar-
3 antee or imply to guarantee any treatment, therapy, or remedy whatsoever;

4 (4) Use any form of advertising that is false, misleading, or decep-
5 tive;

6 (5) Use any title other than that of podiatrist or doctor of podiatric
7 medicine. The term "foot specialist" or "physician and surgeon of the feet"
8 may be used as explanatory terms of the title podiatrist but not alone or as a
9 substitute therefor;

10 (6) Employ a solicitor or solicitors to obtain business;

11 (7) Publish or use untruthful or improbable statements with the intent
12 of deceiving or defrauding the public or any patient; or

13 (8) Violate the applicable standard of podiatric care for the ethical
14 practice of podiatry in this state as described in this chapter.

15 54-608. PROCEEDINGS FOR SUSPENSION, REVOCATION, OR OTHER DISCIPLINE
16 OF LICENSE. (1) Proceedings for the suspension, revocation, or other disci-
17 pline of a license shall be conducted in accordance with the provisions of
18 chapter 52, title 67, Idaho Code.

19 (2) The board shall have the power to administer oaths, take deposi-
20 tions of witnesses within or without the state in the manner provided by law
21 in civil cases, and, throughout the state of Idaho, to require the attendance
22 of such witnesses and the production of such books, records, and papers as
23 it may desire, relevant to any hearing before it of any matter that it has
24 authority to investigate, and for that purpose, the board may issue a sub-
25 poena for any witness or a subpoena duces tecum to compel the production of
26 books, records, or papers, directed to the sheriff of any county of the state
27 of Idaho where such witness resides or may be found, which shall be served
28 and returned in the same manner as a subpoena in a criminal case. Fees and
29 mileage of the witnesses shall be the same as that allowed in the district
30 courts in criminal cases and shall be paid from any funds in the state trea-
31 sury in the same manner as other expenses of the board are paid. In the event
32 of disobedience to or neglect of any subpoena or subpoena duces tecum served
33 on any person, or the refusal of any witness to testify to any matter regard-
34 ing which he may be lawfully interrogated, it shall be the duty of the dis-
35 trict court of any county in this state in which such disobedience, neglect,
36 or refusal occurs, or any judge thereof, upon application by the board, to
37 compel obedience by proceedings for contempt as in the case of disobedience
38 of the requirements of a subpoena issued from such court or for refusal to
39 testify therein. The licensed person accused shall have the same right of
40 subpoena upon making application to the board therefor.

41 (3) If the board finds that the licensed person accused has violated any
42 of the provisions of this chapter, the board may enter an order that includes
43 one (1) or more of the following:

44 (a) Revoking the respondent's license to practice podiatric medicine;

45 (b) Suspending or restricting the respondent's license to practice po-
46 diatric medicine;

47 (c) Imposing conditions or probation on the respondent's license, in-
48 cluding requiring rehabilitation or remediation;

49 (d) Issuing a public reprimand;

(e) Imposing an administrative fine not to exceed ten thousand dollars (\$10,000) for each count or offense; or
 (f) Assessing costs and attorney's fees against the respondent for any investigation, administrative proceeding, or both.

54-609. LICENSE BY ENDORSEMENT. The board may issue a license to an applicant by endorsement where the applicant has passed an examination for and is currently licensed to practice podiatry in another state. The applicant shall satisfy in all other respects the requirements for licensure in this chapter. All applications for licensure by endorsement must be accompanied by an application fee.

54-610. PRACTICE WITHOUT A LICENSE A FELONY. Any person who practices or attempts to practice podiatry, who publicly advertises as a podiatrist, who uses the title chiropodist, podiatrist, or any other word, title, or abbreviation calculated to induce belief that he is engaged in the practice of podiatry, or who holds himself out to the public as diagnosing the ailments of or treating in any manner the human foot by medical, physical, or surgical methods without a license as provided in this chapter shall be deemed guilty of a felony.

54-611. DISPOSITION OF FUNDS AND PROPERTY. (1) On July 1, 2026, or soon as practicable thereafter, the division of occupational and professional licenses shall transfer any outstanding assets, moneys, obligations, or liabilities of the state board of podiatry to the state board of medicine.

(2) All fees received under the provisions of this chapter shall be paid to the division of occupational and professional licenses and deposited into the state treasury to the credit of the occupational licenses fund, and all costs and expenses incurred under the provisions of this chapter shall be a charge against and paid from said fund.

SECTION 3. That Section 54-1805, Idaho Code, be, and the same is hereby amended to read as follows:

54-1805. ~~THE STATE BOARD OF MEDICINE ESTABLISHED.~~ (1) There is hereby established in the division of occupational and professional licenses a state board of medicine to be composed of eleven (11) members.

~~(2) (a) The board shall consist of eleven (11) members. The director of the Idaho state police or the director's designated agent shall be a member of the board. Seven (7) members shall be physicians who are residents of this state and engaged in the active practice of medicine in this state, two (2) members shall be public members, and one (1) member shall be a physician assistant who is a resident of this state and engaged in the active practice of medicine in this state.~~

~~(b) All physician and physician assistant appointments to the board shall be for a single six (6) year term. The physician members shall consist of six (6) members who are licensed to practice medicine in this state and one (1) member who is licensed to practice osteopathic medicine in this state. The physician assistant member shall be licensed to practice medicine in this state. Whenever a term of a member of the board who is licensed to practice medicine or osteopathic~~

1 ~~medicine expires or becomes vacant, the governor shall consider rec-~~
 2 ~~ommendations provided by professional organizations of physicians and~~
 3 ~~physician assistants and by any individual residing in this state for~~
 4 ~~appointment.~~

5 ~~(c) All public members shall be appointed by the governor for three (3)-~~
 6 ~~year terms. Public members must reside in the state and be persons of~~
 7 ~~integrity and good reputation who have lived in this state for at least~~
 8 ~~five (5) years immediately preceding their appointment, who have never~~
 9 ~~been authorized to practice a healing art, and who have never had a sub-~~
 10 ~~stantial personal, business, professional, or pecuniary connection~~
 11 ~~with a healing art or with a medical education or health care facility,~~
 12 ~~except as patients or potential patients.~~

13 (2) (a) Six (6) members shall be physicians who are licensed and engaged
 14 in the active practice of medicine in this state, one (1) member shall
 15 be licensed and engaged in the active practice of osteopathic medicine
 16 in this state, one (1) member shall be licensed and engaged in the active
 17 practice of podiatric medicine in this state, one (1) member shall be a
 18 physician assistant who is licensed and engaged in the active practice
 19 of medicine in this state, and two (2) members shall be public members.

20 (b) All members of the board shall be residents of this state.

21 (c) All members of the board shall be appointed by the governor for five
 22 (5) year terms and shall serve at the pleasure of the governor.

23 (d) Public members must be persons of integrity and good reputation who
 24 have lived in this state for at least five (5) years immediately pre-
 25 ceding their appointment, who have never been authorized to practice a
 26 healing art, and who have never had a substantial personal, business,
 27 professional, or pecuniary connection with a healing art or with a med-
 28 ical education or health care facility, except as patients or potential
 29 patients.

30 (3) Appointments to fill vacancies occurring from some other reason
 31 than expiration of a term for which a member was appointed shall be made in
 32 the same manner as hereinabove set forth for the unexpired term. ~~All board~~
 33 ~~members shall serve at the pleasure of the governor.~~

34 (4) The board shall elect a chairman from its membership. The members
 35 of the board, except for state employees, shall be compensated as provided
 36 by section 59-509(p), Idaho Code. Six (6) members of the board shall consti-
 37 tute a quorum, and the board may act by virtue of a majority vote of members
 38 present at a meeting.

39 SECTION 4. That Section 39-1395, Idaho Code, be, and the same is hereby
 40 amended to read as follows:

41 39-1395. PRACTICE OF PODIATRY -- MEDICAL STAFF MEMBERSHIP. Except as
 42 otherwise provided in this section, no provision or provisions of this sec-
 43 tion shall in any way change or modify the authority or power of the governing
 44 body of any hospital to make such rules, standards or qualifications for med-
 45 ical staff membership as they, in their discretion, may deem necessary or ad-
 46 visable, or to grant or refuse membership on a medical staff.

47 An applicant for medical staff membership may not be denied membership
 48 solely on the ground that the applicant holds a license to practice podiatry
 49 issued by the Idaho state board of podiatry medicine. The criteria utilized

1 for granting medical staff membership shall be reasonable and shall not dis-
2 criminate against podiatry.

3 The process for considering applications for medical staff membership
4 and privileges shall afford each applicant due process.

5 All applications for medical staff membership shall be acted ~~upon~~ on
6 within one hundred twenty (120) days from the date the required information
7 is submitted.

8 The accordane and delineation of clinical privileges for podiatrists
9 shall be determined on an individual basis and commensurate with the appli-
10 cant's education, training, experience and demonstrated competence. In im-
11 plementing these procedures, each hospital shall formulate and apply rea-
12 sonable standards that do not discriminate in the evaluation of an appli-
13 cant's credentials.

14 A member of the medical staff licensed pursuant to chapter 18, title 54,
15 Idaho Code, shall have responsibility for the overall medical care of the pa-
16 tient while in the hospital. Arrangements for the services of a member of the
17 medical staff licensed pursuant to chapter 18, title 54, Idaho Code, for the
18 purposes of this section shall be the sole responsibility of the admitting
19 podiatrist and not that of the hospital or any other member of the medical
20 staff.

21 SECTION 5. That Section 54-4401, Idaho Code, be, and the same is hereby
22 amended to read as follows:

23 54-4401. DEFINITIONS. As used in this chapter:

24 (1) "Board" means:

25 ~~(a) The state board of podiatry as established in chapter 6, title 54,~~
26 ~~Idaho Code;~~

27 ~~(b) (a)~~ The state board of chiropractic physicians as established in
28 chapter 7, title 54, Idaho Code;

29 ~~(c) (b)~~ The state board of dentistry as established in chapter 9, title
30 54, Idaho Code;

31 ~~(d) (c)~~ The state board of nursing as established in chapter 14, title
32 54, Idaho Code;

33 ~~(e) (d)~~ The state board of optometry as established in chapter 15, title
34 54, Idaho Code;

35 ~~(f) (e)~~ The state board of pharmacy as established in chapter 17, title
36 54, Idaho Code;

37 ~~(g) (f)~~ The state board of medicine as established in chapter 18, title
38 54, Idaho Code;

39 ~~(h) (g)~~ The board of veterinary medicine as established in chapter 21,
40 title 54, Idaho Code;

41 ~~(i) (h)~~ The Idaho state board of psychologist examiners as established
42 in chapter 23, title 54, Idaho Code;

43 ~~(j) (i)~~ The state board of social work examiners as established in chap-
44 ter 32, title 54, Idaho Code;

45 ~~(k) (j)~~ The Idaho state counselor licensing board as established in
46 chapter 34, title 54, Idaho Code; and

47 ~~(l) (k)~~ Any health care related board granted licensing authority by
48 the legislature after July 1, 1993.

1 (2) "Peer assistance entity" means an organization, a program, a com-
2 mittee or a professional association ~~which~~ that is designed to address any
3 or all of the following issues affecting practitioners of the health care
4 professions: chemical dependency and/or impairment; psychological impair-
5 ment; and mental or physical impairment.

6 SECTION 6. The rules contained in IDAPA 24.11.01, State Board of Podia-
7 try, relating to the State Board of Podiatry, shall be null, void, and of no
8 force and effect on and after July 1, 2026.

9 SECTION 7. SEVERABILITY. The provisions of this act are hereby declared
10 to be severable and if any provision of this act or the application of such
11 provision to any person or circumstance is declared invalid for any reason,
12 such declaration shall not affect the validity of the remaining portions of
13 this act.

14 SECTION 8. An emergency existing therefor, which emergency is hereby
15 declared to exist, this act shall be in full force and effect on and after
16 July 1, 2026.